

Government of India
Ministry of Personnel, Public Grievances and Pensions
(Department of Personnel and Training)

IR Division

Subject: - Appointment of Chief Information Commissioner in the Central Information Commission.

This is regarding appointment of Chief Information Commissioner in the Central Information Commission. The incumbent Chief Information Commissioner is going to complete his tenure on **03.10.2023**. Hon'ble Supreme Court's in its order in WP No.436 of 2018 dated 15.02.2019, directed to fill up vacancies, in future, without any delay; and that for this purpose, the process for filling up of a particular vacancy is initiated 1 to 2 months before the date on which the vacancy is likely to occur so that there is not much time lag between the occurrence of vacancy and filling up of the said vacancy.

Rule Position

2. As per section 12 (2) of the Act, the Central Information Commission shall consist of the Chief Information Commissioner and such number of Central Information Commissioners, not exceeding ten, as may be deemed necessary.

3. Section 12 (3) of the Act stipulates that - *The Chief Information Commissioner and the Information Commissioners shall be appointed by the President on the recommendation of a Committee consisting of the following:-*

- (i) *the Prime Minister who shall be the Chairman of the Committee,*
- (ii) *the Leader of the Opposition in the Lok Sabha, and*
- (iii) *a Union Cabinet Minister to be nominated by the Prime Minister.*

The Act further explains that for the purpose of removal of doubts, it is hereby declared that where the Leader of the Opposition in the House of the People has not been recognized as such, the Leader of the single largest group in opposition of the Government in the House of the People shall be deemed to be the Leader of Opposition.

4. As per Section 12(5) of the RTI Act, *The Chief Information Commissioner and Information Commissioners shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance.*

5. Section 12(6) of the RTI Act, 2005 mandates that *"The Chief Information Commissioner or an Information Commissioner shall not be a*

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Member of Parliament or Member of the Legislature of any State or Union territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession."

6. At present, the Central Information Commission has a Chief Information Commissioner and four Information Commissioners. Incumbency Statement of Chief Information Commissioner and Information Commissioners is placed at **Flag 'A'**.

Flag 'A'
P. 9/Cor.

Process

7. As per past practice, the process of selection of Chief Information Commissioner involves following steps:-

- (i) Particulars of interested persons are invited through advertisements in newspapers (two English and two Hindi) and through DoPT's Website. A copy of last advertisement issued is at **Flag 'B'**.
- (ii) Particulars of applicants are tabulated by DoPT and sent to a Search Committee (constituted by PM) chaired by the Cabinet Secretary.
- (iii) Shortlisted names are sent to the Committee constituted under Section 12(3) headed by the Hon'ble Prime Minister.
- (iv) Persons recommended by the Committee under Section 12(3) are appointed by the Hon'ble President.

Flag 'B'
P. 10-11/Cor.

8. Hon'ble Supreme Court in its Judgement dated 15.02.2019 in WP No.436 of 2018: Ms Anjali Bhardwaj & others Vs. Union of India and others pertaining to fill up the vacancies in CIC, has disposed of the WP, inter-alia holding that-

(i) The procedure is now adequately transparent, one cannot find fault in the process of appointment;

(ii) There have been undue delay in filling up these vacancies; and that vacancies shall be filled up, in future well in time.

(iii) The terms and conditions on which such appointments are to be made, be specifically stipulated in the advertisement and put on the website as well;

(iv) The Search Committee ought to make criteria for shortlisting the candidates so that it is ensured that shortlisting is done on the basis of objective and rational criteria;

(v) Information Commissioners are appointed from other streams/categories as well;

(vi) Vacancies be filled up in future without any delay by initiating the process for filling up the vacancies one or two months before.



9. In view of the above, Hon'ble Prime Minister's approval may be solicited on the following :-

- (i) To start process of appointment of Chief Information Commissioner in the CIC as per past practice by publication of advertisement, shortlisting by Search Committee and selection by Committee under Section 12(3).
- (ii) Constitution of Search Committee for shortlisting of candidates. A copy of the composition of Search Committee for the last occasion is placed at **Flag 'C'**.
- (iii) To nominate one Union Cabinet Minister as member of the Committee, headed by Hon'ble PM, to be constituted under Section 12(3) of RTI Act. [During the last round of Selection of CIC/IC, Shri Amit Shah, Union Home Minister, was nominated as member of the Committee.]
- (iv) Draft advertisement inviting applications for appointment of Chief Information Commissioner in the CIC is placed:-
- To be published in newspapers.
 - To be placed on DoPT's website.

Inder

(Inder Pal)

ASO (IR-II)/Dated: 30.06.2023

SO (IR-II)

US (RTI)

Birendra

30/6/23

Pawan Kumar

30/06/23

DDP (NAT)

Submitted for soliciting the kind approval of Hon'ble Prime Minister through Hon'ble MOS (PP), please.

Prakash
30/6/23

Secy (P)

Government of India
Ministry of Personnel, Public Grievances and Pensions
(Department of Personnel and Training)
IR Division

Subject: - Appointment of Chief Information Commissioner in the Central Information Commission.

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Rule Position

2. As per section 12 (2) of the Act, the Central Information Commission shall consist of the Chief Information Commissioner and such number of Central Information Commissioners, not exceeding ten, as may be deemed necessary.

3. Section 12 (3) of the Act stipulates that - *The Chief Information Commissioner and the Information Commissioners shall be appointed by the President on the recommendation of a Committee consisting of the following:-*

- (i) the Prime Minister who shall be the Chairman of the Committee,
- (ii) the Leader of the Opposition in the Lok Sabha, and
- (iii) a Union Cabinet Minister to be nominated by the Prime Minister.

The Act further explains that for the purpose of removal of doubts, it is hereby declared that where the Leader of the Opposition in the House of the People has not been recognized as such, the Leader of the single largest group in opposition of the Government in the House of the People shall be deemed to be the Leader of Opposition.

4. As per Section 12(5) of the RTI Act, *The Chief Information Commissioner and Information Commissioners shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance.*

5. Section 12(6) of the RTI Act, 2005 mandates that "The Chief Information Commissioner or an Information Commissioner shall not be a

Member of Parliament or Member of the Legislature of any State or Union territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession."

6. At present, the Central Information Commission has a Chief Information Commissioner and four Information Commissioners. Incumbency Statement of Chief Information Commissioner and Information Commissioners is placed at **Flag 'A'**.

Process

7. As per past practice, the process of selection of Chief Information Commissioner involves following steps:-

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- (ii) Particulars of applicants are tabulated by DoPT and sent to a Search Committee (constituted by PM) chaired by the Cabinet Secretary.
- (iii) Shortlisted names are sent to the Committee constituted under Section 12(3) headed by the Hon'ble Prime Minister.
- (iv) Persons recommended by the Committee under Section 12(3) are appointed by the Hon'ble President.

8. Hon'ble Supreme Court in its Judgement dated 15.02.2019 in WP No.436 of 2018: Ms Anjali Bhardwaj & others Vs. Union of India and others pertaining to fill up the vacancies in CIC, has disposed of the WP, inter-alia holding that-

(i) The procedure is now adequately transparent, one cannot find fault in the process of appointment;

(ii) There have been undue delay in filling up these vacancies; and that vacancies shall be filled up, in future well in time.

(iii) The terms and conditions on which such appointments are to be made, be specifically stipulated in the advertisement and put on the website as well;

(iv) The Search Committee ought to make criteria for shortlisting the candidates so that it is ensured that shortlisting is done on the basis of objective and rational criteria;

(v) Information Commissioners are appointed from other streams/categories as well;

(vi) Vacancies be filled up in future without any delay by initiating the process for filling up the vacancies one or two months before.

9. In view of the above, Hon'ble Prime Minister's approval may be solicited on the following :-

- (i) To start process of appointment of Chief Information Commissioner in the CIC as per past practice by publication of advertisement, shortlisting by Search Committee and selection by Committee under Section 12(3).
- (ii) Constitution of Search Committee for shortlisting of candidates. A copy of the composition of Search Committee for the last occasion is placed at **Flag 'C'**.
- (iii) To nominate one Union Cabinet Minister as member of the Committee, headed by Hon'ble PM, to be constituted under Section 12(3) of RTI Act. [During the last round of Selection of CIC/IC, Shri Amit Shah, Union Home Minister, was nominated as member of the Committee.]
- (iv) Draft advertisement inviting applications for appointment of Chief Information Commissioner in the CIC is placed:-
 - a) To be published in newspapers.
 - b) To be placed on DoPT's website.

Bikesh
(Bikesh Kr. Barnawal)
SO (IR-II)/Dt: 24.07.2023

US (IR-II)- on training
~~US (IR-I) - L.O.~~

JS (NM) Submitted for seeking the kind approval
of Hon'ble Prime Minister, through Hon'ble Mos (PP), please
24/7/23

Secretary (P)
Nos (PP)
24/7/2023

24.7.23

PM

- 7 -
PRIME MINISTER'S OFFICE

[Human Resources Cell]

South Block, New Delhi - 110 011

Sub: Appointment of Chief Information Commissioner in the Central Information Commission-- reg.

Reference is invited to DoPT's note dated 24.07.2023 at pages 04-06/N of file No. 4/3/2023-IR II, on the subject cited above.

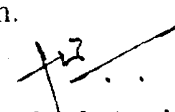
2. Prime Minister has approved the following proposals of DoPT :-

- (i) To start process of appointment of Chief Information Commissioner in the CIC, as per past practice by publication of advertisement, shortlisting by Search Committee and Selection by Committee under Section 12(3) of the RTI Act, 2005.
- (ii) Constitution of Search Committee for shortlisting of candidates for the post of Chief Information Commissioner in the Central Information Commission with the following composition: -

1.	Cabinet Secretary	Chairman
2.	Secretary (Personnel)	Member
3.	Secretary (I&B)	Member
4.	Secretary (DPIIT)	Member
5.	Dr. Manoj Panda, (Director), Institute of Economic Growth, Delhi University	Member

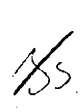
- (ii) To nominate Shri Amit Shah, Union Home Minister, as member of the Committee, headed by Hon'ble PM, to be constituted under Section 12(3) of RTI Act.
- (iv) Draft advertisement inviting applications for appointment of Chief Information Commissioner in the CIC:
 - a) To be published in newspapers.
 - b) To be placed on DoPT's website

3. DoPT's file/folder No. 4/3/2023-IR II, is returned herewith.


(Hrisheekesh Arvind Modak)
Director
Tel. No. 2301 3485

Secretary, Department of Personnel & Training
PMO ID no. 5676419/PMO/2023-HR Cell

Dated: 05.08.2023

 Director (IR)
2/8 DS (IR)

25
01.8.23

Subject: Appointment of Chief Information Commissioners in CIC- approval of media plan of CBC (DAVP) for publication of advertisement reg.

This is regarding appointment to the Chief Information Commissioner in the Central Information Commission for which the Advertisement dated 07.08.2023 has been published on the official website of this Department. The last date of receipt of application is 29.08.2023. This Department vide letter dated 07.08.2023 requested the Central Bureau of Communication (CBC)/DAVP to publish the advertisement (English and Hindi) in four newspapers viz. 'The Hindu' and 'Times of India' (in English); 'Dainik Bhaskar' and 'Hindustan' (in Hindi) and all their editions in India on 09.08.2023.

2. In response, the CBC sent initially media plan for the advertisement with an estimated cost of Rs.1,85,189/-, however the said media plan was not found covering all States & UTs of India. The matter was discussed with CBC official and it was requested to send a revised Media Plan covering all States & UTs. Accordingly, the CBC sent a revised media plan covering all State Capitals & UTs (wherever applicable) for Rs.1,83,762 with request to arrange funds for publication of the advertisements as per the approved media plan.

3. The above expenditure of Rs.1,83,762/- will be debitable to Major Head 2052- Secretariat General Services - 00.090-Secretariat (Minor Head) -05 - Ministry of Personnel, PG & Pensions, 05.01- Department of Personnel & Training, 05.01.26- Advertising and Publicity, Demand No. 74 for the year 2023-24.

4. As per Order dated 12.01.2018, the financial power of HoD in non-recurring expenditure in each case is Rs. 3.00 lakh.

5. Accordingly, the file is submitted for approval of (i) media plan as forwarded by CBC (DAVP); and (ii) sanction of the estimated amount of Rs.1,83,762/- for the advertisements to be published.

6. Kind approval of JS(Admin) is solicited for referring the file to Director (Admn) as HoD for payment of Rs.1,83,762/ in favour of Central Bureau of Communication (CBC) (DAVP).

Yadav 08/08/2023
(Gautam Yadav)
ASO (IR-II)/Dated 08.08.2023

SO (IR-II)

US (IR-II) L.O.

JSC Admin)

*This was discussed with
DG DAVP/CBC. 08/8/23.*

Approved, as proposed.

*Dir (Admn)
US (IR)*

*AKL
08/8/23.
8/8/23.*

Reference approval at pre page -

Ad-II Section is requested to create an electronic sanction for the LOA dated 08.08.2023 for the amount of Rs. 1,83,762/- in favour of M/o I & B (CBC). #

~~SO (Ad-II)~~

~~SO (Ad-II)~~ 09/08/2023.

Bikeph
08/8/23
SO (Ad-II)

Sh. Sevil.

Reference: - notes above.

LOA An electronic sanction for the LOA dated 08/08/2023 has been created on PFMS for an amount of Rs. 1,83,762/- in favour of M/o I & B (CBC) as requested by IR division. file may be returned to IR section.

~~Shukun~~
09/08/23

~~SO (Ad-II)~~

~~SO (Ad-II)~~ 09/08/2023.

~~SO/IR.~~
ASO(S)

~~SO (Ad-II)~~
9/8/23

(Department of Personnel and Training)
(IR Division)

Subject: Appointment of Chief Information Commissioner in the Central Information Commission

This is regarding appointment of Chief Information Commissioner in the Central Information Commission.

Rule Position

2. As per Section 12 (2) of the RTI Act, the Central Information Commission shall consist of the Chief Information Commissioner and such number of Central Information Commissioners, not exceeding ten, as may be deemed necessary.

3. As per Section 12(5) of the RTI Act, 2005, the Chief Information Commissioner shall be person of eminence in public life with wide knowledge and experience in "law, science and technology, social service, management, journalism, mass media or administration and governance."

4. PMO vide ID No. 5676419/PMO/2023-HR Cell dated 05.08.2023 (pp.7/N) has conveyed the approval of the Hon'ble Prime Minister to start the process of appointment of Chief Information Commissioner in the Central Information Commission, as per past practice by publication of advertisement, shortlisting by Search Committee and selection by Committee under Section 12(3) of the RTI Act, 2005.

(i) The constitution of Search Committee for short-listing of candidate for appointment as Chief Information Commissioners with the following composition :-

a.	Cabinet Secretary	Chairman
b.	Secretary (Personnel)	Member
c.	Secretary (I&B)	Member
d.	Secretary (DPIIT)	Member
e.	Dr. Manoj Panda, (Director), Institute of Economic Growth, Delhi University	Member

(ii) Nominating Shri Amit Shah, Union Home Minister as member of the Committee, headed by Hon'ble PM, to be constituted under Section 12(3) of RTI Act.

5. Accordingly, an Advertisement inviting particulars of interested persons for the post of Chief Information Commissioner in the Central Information Commission was published on the website of this Department on 07.08.2023 and also in leading newspapers on 09.08.2023. The last date for receipt of applications was **29.08.2023 (5 PM)**.

6. A total no. of **76 applications** for the post of Chief Information Commissioner in the Central Information Commission have been received by the last date i.e. 29.08.2020 (5:00PM). Advance copy of applications received before

X PP-13/Com

pp-42-43/Com

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due date have also been included. In addition to 76 applications received within time, 4 more applications have been received after the due date /time.

7. Hon'ble Supreme Court in its Judgement dated 15.02.2019 in WP No.436 of 2018: Ms Anjali Bhardwaj & others Vs. Union of India and others pertaining to filling up the vacancies in CIC, has disposed of the WP, inter-alia holding that-

- i. The procedure is now adequately transparent, one cannot find fault in the process of appointment;
- ii. There have been undue delay in filling up these vacancies; and that vacancies shall be filled up, in future well in time.
- iii. The terms and conditions on which such appointments are to be made be specifically stipulated in the advertisement and put on the website as well;
- iv. The Search Committee ought to make criteria for short-listing the candidates public so that it is ensured that short-listing is done on the basis of objective and rational criteria.
- v. Information Commissioners are appointed from other streams/categories as well;
- vi. Vacancies be filled up in future without any delay by initiating the process for filling up the vacancies one or two months before.

8. The incumbent Chief Information Commissioner, Shri Yashvardhan Kumar Sinha is going to complete his tenure on **03.10.2023**.

9. In view of the above, convenience of the Cabinet Secretary as Chairman of Search Committee may be solicited to convene a meeting for short-listing of the candidate(s) for the post of Chief Information Commissioner in the Central Information Commission at the earliest.

(Gautam Yadav)
ASO (IR-II)/Dated 01/09/2023

SO (IR-II)

USC (IR-II)

ASO (IR)

JS (Admin. & IR)

Secretary (P)

Cabinet Secretary

Bikeel
01/09/23

Pawan Kumar
01/09/23

SD Sawant
11/9/2023

28
01.9.2023

List of applicants along with the details as well as eminence w/ list has been prepared as placed below
Pawan
01/09/23

@ pp. 9/can

15/6/23/23
11/9

-124-

Confidential

F. No. 08/03/2019-CS(A)
CABINET SECRETARIAT

New Delhi, Dated the 31st October, 2023

Subject: Selection to the posts of Chief Information Commissioner and Information Commissioners in the Central Information Commission (CIC) - reg.

A meeting of the Search Committee for selection to the posts of Chief Information Commissioner and Information Commissioners in the CIC is scheduled to be held at 04:00 PM on 01.11.2023 in the Committee Room, Cabinet Secretariat, Rashtrapati Bhawan, New Delhi.

2. All the members of the Search Committee may please be requested to attend the meeting accordingly.
3. Further, six (06) sets of Agenda Note for the meeting [along with soft copy of the same in MS-Word] may be sent to this Secretariat and the Agenda Note may be circulated to the members of the Search Committee.



(Smita Sarangi)

Director (ACC)

Tel. No.: 23016130

E-mail: smitta.sarangi@nic.in

Smt. S. Radha Chauhan,
Secretary,
Department of Personnel & Training

-12-

F. No: 4/3/2023-IR II (Pt)
Department of Personnel and Training
(IR Division)

Subject: Appointment of Chief Information Commissioner in Central Information Commission- reg.

Prime Minister's Office PMO vide ID No. 5676419/PMO/2023-HR Cell dated 05.08.2023 has conveyed the approval of the Prime Minister to initiate the process of appointment of Chief Information Commissioner in the Central Information Commission as per the past practice of publication of advertisement in leading newspapers, constitution of Search Committee and nomination of Sh. Amit Shah, Union Home Minister as a member of the Selection Committee headed by the Hon'ble Prime Minister in terms of Section 12(3) of the RTI Act.

2. Accordingly, an advertisement inviting particulars of interested persons for Chief Information Commissioner in the Central Information Commission was published on the website of this Department on 07.08.2023 and also in leading newspapers on 09.08.2023. The last date for receipt of applications was **29.08.2023**. A total no. of **76** applications for the post of Chief Information Commissioner in the Central Information Commission have been received by the due date/time i.e. 29.08.2023 (5:00 PM). Advance copy of applications received before due date have also been included. In addition to 76 applications received within time, 4 more applications have been received after the due date.

3. The main file seeking convenience of Cabinet Secretary as the Chairman of the Search Committee for convening meeting for shortlisting candidates for appointment to the post of Chief Information Commissioner in CIC is under submission to Cabinet Secretariat.

4. It is learnt that the meeting of the Search Committee is likely to be held shortly. Accordingly, Draft Agenda Note for Search Committee for shortlisting candidates for the post of Chief Information Commissioner in CIC is submitted for consideration please.

Bikesh

(Bikesh Kr. Barnawal)
SO (IR-II)/Dated 31.10.2023

US (IR-II)

US (IR)

JS (IR)

Pawan Kumar

31/10/23

31/10/23

SD Saini

31/10/23

31/10/23

Secy (OT)

Dis (IR)

Pawan

31/11/23

Sec IR-2

US (IR)

CONFIDENTIAL

PRIME MINISTER'S OFFICE

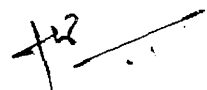
South Block,
New Delhi – 110 011

Subject: Meeting of the Selection Committee for appointment of Chief Information Commissioner and Information Commissioners in CIC-Regarding.

Reference is invited to DoPT's notes on the subject cited above.

2. The undersigned is directed to convey that Prime Minister has agreed to chair the meeting of the Selection Committee for appointment to the posts of Chief Information Commissioner and Information Commissioners in Central Information Commission (CIC), on 03.11.2023 at 6:00 PM at 7 LKM, New Delhi.

3. DoPT is further requested to inform all the Hon'ble Members of the Selection Committee accordingly.


(Hrisheekesh Arvind Modak)
Director
Tel. No. 2301 3485

Secretary, Department of Personnel & Training

PMO ID No.: 600/52/C/05/2023-IIR.

Dated 01.11.2023

- i. PS to PM
- ii. Sr. PPS to Principal Secretary to PM
- iii. PPS to JS(S)

Department of Personnel and Training
IR Division

Subject: Appointment of Chief Information Commissioner and Information Commissioners in Central Information Commission- reg.

This is regarding appointment of Chief Information Commissioner and Information Commissioners in Central Information Commission.

2. PMO vide its Id No.5587955/PMO/2022-HR Cell dated 17.12.2022 and Id No.5676419/PMO/2023-HR Cell dated 05.08.2023 has conveyed the approval of the Prime Minister to initiate the process of appointment of Information Commissioners and Chief Information Commissioner respectively in the Central Information Commission as per practice of publication of advertisement in leading newspapers and constitution of Search Committee.

3. Cabinet Secretariat vide their communication No. 08/03/2019-CS(A) dated 31st Oct. 2023 had communicated that the meeting of the Search Committee for appointment of Chief Information Commissioner and Information Commissioners will be held on 1st Nov. 2023 at 04:00 PM in Cabinet Secretariat, Rashtrapati Bhawan, accordingly meeting notice was issued.

4. The meeting was held by the Cabinet Secretary on 01.11.2023. The Minutes of the meeting of the Search Committee received from Cabinet Sectt may be seen at F/X.

5. PMO vide its ID No.600/52/C/05/2023-HR dated 01.11.2023 conveyed that the meeting of the Selection Committee will be held on 3rd Nov. 2023 at 06:00 PM at 7 Lok Kalyan Marg, New Delhi. Accordingly meeting notice is placed below for approval please. The Agenda note for the Selection Committee meeting in r/o Chief Information Commissioner and Information Commissioners is also placed below for approval please

Submitted please.

US (IR-II)

(Signature)

(Signature)

Secretary (P)

(Signature)
(Bikesh Kr. Barnawal)
SO (IR-II)/dated 01.11.2023

(Signature)
01/11/2023

(Signature)
01/11/23

(Signature)
01.11.23

Government of India
Ministry of Personnel, Public Grievances and Pensions
(Department of Personnel & Training)

Subject: Appointment of Chief Information Commissioner in Central Information Commission.

This proposal is regarding filling up of the vacant post of Chief Information Commissioner (CIC) in the Central Information Commission as the previous incumbent Shri Yashvardhan Kumar Sinha demitted office upon completion of his tenure on 03.10.2023.

2. In exercise of the powers conferred by Section 12(1) of Right to Information Act, 2005, the Central Government has constituted the Central Information Commission. As per Section 12(2) of the Act, the Commission shall consist of the Chief Information Commissioner and such number of Central Information Commissioners not exceeding ten, as may be deemed necessary.

3. As per Section 12(5) of the RTI Act, 2005, the Chief Information Commissioner and Information Commissioners shall be persons of eminence in public life, with wide knowledge and experience in "law, science and technology, social service, management, journalism, mass media or administration and governance".

4. According to Section 12(3) of the Act, the Chief Information Commissioner and the Information Commissioners shall be appointed by the President on the recommendation of the Committee consisting of:

- (i) The Prime Minister who shall be the Chairperson of the Committee ;
- (ii) the Leader of the Opposition in the Lok Sabha ; and
- (iii) A Union Cabinet Minister to be nominated by the Prime Minister.

And where the Leader of opposition in the House of the People has not been recognised as such, the leader of the single largest group in opposition of the Government in the House of the People shall be deemed to be the Leader of Opposition.

5. As per Section 13(1) of the Right to Information Act, 2005, the Chief Information Commissioner shall hold office for such term as may be prescribed by the Central Government and shall not be eligible for re-appointment. Provided that no Chief Information Commissioner shall hold office after he has attained the age of 65 years. Further provided that where the Information Commissioner is appointed as the Chief Information

C-1157263/CA-I/2023

Commissioner, his term of office shall not be more than 5 years in aggregate as the Information Commissioner and the Chief Information Commissioner.

6. As per Section 27 (1), "the appropriate Government may, by notification in the Official Gazette, make rules to carry out the provisions of this Act. Accordingly, The Right to Information (Terms of Office, Salaries, Allowances and other Terms and Conditions of Service of Chief Information Commissioner, Information Commissioners in the Central Information Commission, State Chief Information Commissioner and State Information Commissioners in the State Information Commission) Rules, 2019 have been framed and published in the Gazette vide Notification dated 24th October, 2019.

7. As per these Rules, the Chief Information Commissioner shall hold office for a period of three years from the date on which he enters upon his office. The other terms and conditions of appointment have also been laid out in these Rules.

8. Anticipating that the post of CIC in the Central Information Commission was due to fall vacant w.e.f. 04.10.2023, due to completion of tenure of Shri Yashvardhan Kumar Sinha, a proposal to fill up the vacancy was initiated by Department of Personnel & Training. The approval of Hon'ble Prime Minister was obtained for initiating the process of selection for suitable persons for the post of CIC and for the constitution of Search Committee.

9. Accordingly, the Committee as per Section 12(3) of the RTI Act, 2005, was constituted with the Prime Minister as Chairperson; and Shri Amit Shah, Union Home Minister and Shri Adhir Ranjan Chowdhury, Leader of the single largest Group in Opposition of the Government in the Lok Sabha, as Members.

10. The Prime Minister had on 05.08.2023 approved the constitution of a Search Committee for the present round of selection process (page no. 7/N) as given below:-

i.	Cabinet Secretary	Chairman
ii.	Secretary (Personnel)	Member
iii.	Secretary (I&B)	Member
iv.	Secretary (DPIIT)	Member
v.	Dr. Manoj Panda, Former RBI Chair Professor, Institute of Economic Growth, Delhi University	Member

11. Vacancy circular dated 07.08.2023 was accordingly published in both Hindi and English on the website of this Department. An advertisement was issued on 09.08.2023 through the Central Bureau of Communications (CBC)

P.13/C

in the leading newspapers inviting applications for appointment to the post of CIC. The last date for receipt of applications was 29.08.2023.

12. In response, a total number of 76 applications had been received by the last date for the post of CIC in the Central Information Commission. List of applications may please be seen at **pages 57-68/corr.**

13. The Search Committee met under the Chairmanship of Cabinet Secretary on 01.11.2023 and shortlisted two candidates for the post of CIC in the Central Information Commission. Minutes of the Search Committee are placed hereunder (**pages 94-95/corr.**).

14. The Meeting of the Committee constituted under Section 12(3) of the Right to Information Act, was held at 6:00 PM on 03.11.2023 under the chairmanship of the Prime Minister. Agenda note of the meeting is also placed hereunder (**pages 100-102/corr.**). The Committee perused the Agenda note, including the details of the applicants along with their profile. In addition to the candidates shortlisted by the Search Committee headed by Cabinet Secretary, the Committee considered all eligible applicants who had applied in response to advertisement for the post of Chief Information Commissioner issued on 07.08.2023.

15. After due consideration, the Committee recommended Shri Heeralal Samariya, currently Information Commissioner in Central Information Commission, for appointment as Chief Information Commissioner in the Central Information Commission. The minutes of the meeting dated 03.11.2023 are also placed at **pp 133-135/corr.**

16. The profile of Shri Heeralal Samariya, who is presently recommended for appointment as Chief Information Commissioner, is also placed at **page 60/cor.**

17. Shri Heeralal Samariya who is a sitting Information Commissioner in the Central Information Commission will be eligible to be appointed as Chief Information Commissioner for a period up to 13.09.2025, the date on which he completes 65 years of age.

18. Further, the salaries and other conditions of service of Shri Heeralal Samariya as Chief Information Commissioner will be as per The Right to Information (Terms of Office, Salaries, Allowances and other Terms and Conditions of Service of Chief Information Commissioner, Information Commissioners in the Central Information Commission, State Chief Information Commissioner and State Information Commissioners in the State Information Commission) Rules, 2019.

19. On receipt of approval of the Hon'ble President of India, a letter of offer stating the terms of office and other conditions of service will be made to Shri Heeralal Samariya. A draft of the offer of appointment is at **Flag 'X'**.

20. On acceptance of the offer of appointment by Shri Heeralal Samariya, the convenience of the Hon'ble President of India will be sought for administering an oath or affirmation according to the form set out for the purpose in the first schedule as per Section 13 (3) of the Right to Information Act, 2005. Once the oath of affirmation is administered, the appointment will be notified in the Gazette of India as per draft at **Flag 'Y'**.

21. In view of the foregoing, the Prime Minister may like to recommend to the Hon'ble President of India, the following:-

(i) to appoint Shri Heeralal Samariya as Chief Information Commissioner in the Central Information Commission as per Section 12(3) of the Right to Information Act from the date he enters office for a period upto 13.09.2025.

(ii) The terms and conditions of appointment of the Chief Information Commissioner will be as contained in The Right to Information (Terms of Office, Salaries, Allowances and other Terms and Conditions of Service of Chief Information Commissioner, Information Commissioners in the Central Information Commission, State Chief Information Commissioner and State Information Commissioners in the State Information Commission) Rules, 2019.


(S. Radha Chauhan)
Secretary (P)
03.11.2023

MoS(PR) 1/11/23
3.11.2023

Prime Minister

President of India


4.11.23

Minister of State (PP) [Dr. Jitendra Singh]
President's Secretariat, ID No. 53(3)-CAI/2023 dated 04.11.2023

Secretary (P)

JS (Admin) - Su 4/11


04.11.23.
Dir (IR) - us (IR)

-20-

F.No: 4/3/2023-IR II

Department of Personnel & Training
IR Division

Subject: Appointment of Chief Information Commissioner in the Central Information Commission.

Reference approval of the Hon'ble President for appointment of Shri Heeralal Samariya as the new Chief Information Commissioner in CIC may be seen at p.18/N.

2. In pursuance of the above approval, Offer of Appointment was made to Shri Heeralal Samariya vide letter dated 04.11.2023 (pp.137/corr) to which he accepted vide his Acceptance letter dated 04.11.2023 (pp.138/corr). Subsequently, President Secretariat was requested (pp.140/corr) to indicate date and time at which the Hon'ble President would administer Oath to the new Chief IC. In response, President Sectt vide its Letter dated 04.11.2023 (pp.143/corr) informed that Shri Samariya would be administered Oath by the Hon'ble President on 6th November, 2023 at 10:00 am at Rashtrapati Bhawan.

3. The above appointment of Shri Heeralal Samariya as the Chief Information Commissioner has to be **published in Part-II Section 3, sub-section (ii) of the Gazette of India, Extraordinary**. Accordingly, draft notifications both in Hindi and English are placed at Flag 'A' and Flag 'B' for approval and signature please. We may request the Manager, Government of India Press, Mayapuri to publish the Appointment Notification on **6th November, 2023 after 1200 hrs as per Flag 'C'**.

US (IR-II)

Dir (IR) - O.L

JS (IR)

Secretary (P)

JS (IR)

Dir (IR) OL
US (IR.2)

Bikesh
06/11/23

(Bikesh Kr. Barnawal)

SO (IR-II)/Dated 06.11.2023

Pawan Kumar
06/11/2023

JS (IR)
6/11/23

JS
06/11/23

JS
6/11